



Maritime &
Coastguard
Agency

Guidance

MGN 686 (M+F) Eligibility for British Seaman's Card

Published 22 November 2023

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Summary

This notice sets out the regulations, policies and procedures governing the issue of the British Seaman's Card including eligibility for a British Seaman's Card and how to demonstrate eligibility.

This is interim guidance pending public consultation on eligibility for seafarer documents.

To apply for a British Seaman's Card, download the application form MSF 4509 from www.gov.uk (<http://www.gov.uk>).

From 1 May 2023, those working on fishing vessels are eligible to apply for a British Seaman's Card.

1. Introduction

1.1 By the nature of their work, seafarers work and live on ships involved in international trade and access to shore facilities and shore leave are vital elements of seafarers' general well-being. The ability to go ashore is essential for joining a ship and leaving after the agreed period of service. Seafarers therefore have various entitlements under international Conventions relating to transit of third countries in order to join or leave a ship on an international voyage, and to shore leave. The British Seaman's Card is intended to demonstrate that the holder is a bona fide seafarer and therefore has those entitlements under international law.

1.2 The British Seamen's Card is not a travel document and does not replace the requirement for a passport or visa for working or staying in third countries. In particular, holding a British Seamen's Card does not automatically exempt seafarers from the 90 day maximum stay in a 180 day period in the Schengen Area – information is available here: <https://www.gov.uk/travel-to-eu-schengen-area> (<https://www.gov.uk/travel-to-eu-schengen-area>). Some immigration authorities will require a British Seamen's Card as proof of eligibility to enter the country in order to join or leave a ship which is engaged in international voyages.

1.3 The British Seaman's Card is issued under the International Labour Organization's Convention on Seafarer Identity Documents No. 108.

1.4 There is no statutory requirement for any seafarer to apply for a British Seaman's Card.

2. Eligibility

2.1 The Merchant Shipping (Seamen's Documents) Regulations 1987 set out who is eligible to apply for a British Seaman's Card. The Regulations use the term "seaman", which is defined in section 313 of the Merchant Shipping Act 1995: "'Seaman' includes every person (except masters and pilots) employed or engaged in any capacity on board any ship".

2.2 Although this notice uses the term "seafarer", it is the above definition which determines eligibility for a British Seaman's Card. See section 4.

2.3 The applicant:

- must be a British citizen with a Right of Abode in the United Kingdom; and
- must not hold a seaman's identity document any of the governments listed in Annex A.

2.4 The applicant must be employed or ordinarily employed in a ship. However, the following do not under the Regulations count as qualifying employment:

- employment in a ship belonging to a general lighthouse authority;
- employment for which no wages or only nominal wages are due.

2.5 Notwithstanding the sub-paragraph above, cadets (who may not be paid a wage) and fishermen paid on the basis of a share of the catch are eligible for a British Seaman's Card.

3. How to demonstrate eligibility

3.1 For your first application for a British Seaman's Card you must provide a certified copy of your UK passport. For renewal, you will be required to

provide the existing document for cancellation (after which it will be returned to you).

3.2 If your name has changed, you will be required to provide certified copies of relevant supporting documentation (e.g. deed poll, passport, marriage/divorce certificate or gender realignment certificate).

4. Who is a seafarer?

4.1 There are many roles which require the presence of workers on ships who are not seafarers. For example, an MCA surveyor may work on board ships at sea, but their normal place of work is not on board the ship. Similarly, a wind turbine technician will often travel on a seagoing vessel in order to reach their place of work, but their normal place of work is on the wind turbine, not on board the ship.

4.2 The MCA does not consider the following to be seafarers:

- Contractors who attend the ship for commissioning, repair or decommissioning of its equipment.
- Those using the ship solely for accommodation at, or transport to, the place of work.

4.3 Although Privately Contracted Armed Security Personnel (PCASP) are not considered to be seafarers for the purposes of the Maritime Labour Convention or for the issue of Discharge Books, the Maritime and Coastguard Agency will issue a British Seaman's Card to PCASPs on application on the grounds that their presence on board a ship operating in a high risk area is essential to the safety of seafarers and they may have to be deployed at short notice. Arrangements for the verification of applications are in place.

4.4 The applicant for a British Seaman's Card or their employer/sponsor must provide the following to demonstrate that they are a seafarer:

- evidence of STCW personal safety and social responsibility training (PSSR) (this course can be taken on line);
- a seafarer employment agreement or equivalent terms and conditions of employment; and
- application form MSF 4509 signed by the shipowner or an authorised representative of the shipowner (e.g. listed on the shipowner's DMLC part 2); OR

- a letter from the shipowner, attesting that the applicant is engaged to work on board [name and flag of Ship] for the period [provide dates or specify an unlimited period] and their normal place of work will be on board the ship [or ships].

4.5 For the avoidance of doubt, the signature of the Master (unless the Master is also the shipowner) or any member of ship's crew will not be accepted.

4.6 Travel on board a ship to the workplace, or overnight accommodation on board the vessel does not fulfil the requirement for the normal place of work on board the ship.

4.7 The MCA is consulting on this policy and the criteria for establishing eligibility as a seafarer for the purposes of issue of a British Seaman's Card may change as a result of that consultation. Therefore, issue of a British Seaman's Card to an applicant does not guarantee that the same applicant will qualify for a British Seaman's Card on renewal.

5. Process

5.1 The application form for a British Seaman's Card is available on www.gov.uk (MSF 4509). Applications should be made by post as original photographs are required. A hard copy is required together with original photographs and only paper copy application forms, containing original, "wet" signatures and stamps/seals will be accepted.

5.2 An application form must be accompanied by two identical, colour, passport-style photographs and payment of the statutory fee.

5.3 For a first British Seaman's Card, parts A, C, E, G and H of form MSF 4509 must be completed.

5.4 For continuation or replacement British Seaman's Card, Parts A, B, C, F, G and H of form MSF 4509 must be completed.

5.5 All applications should be submitted to the following address:

Registry of Shipping and Seamen
Maritime and Coastguard Agency
Anchor Court
Keen Road, Cardiff
CF24 5JW
United Kingdom

5.6 It is recommended that applications are submitted at least three weeks before the British Seaman's Card is required.

More information

Seafarer Safety and Health, Regulations and Standards
Maritime and Coastguard Agency
Bay 2/17
Spring Place
105 Commercial Road
Southampton
SO15 1EG

Telephone: +44 (0)203 90 85200

Email: seafarer.registry@mcga.gov.uk

Website: www.gov.uk/mca (<https://www.gov.uk/mca>)

Please note that all addresses and telephone numbers are correct at time of publishing.



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